Montgomery County District Court

Cause No. 2024-CV-0026

Brenda Christian, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 9, 2024
Plaintiff's counsel:	Andrew Lewis, Johnson & Lowery Injury Lawyers

PARTIES

Plaintiff Brenda Christian is an individual resiidng in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write personal auto policies in the State of Texas, which issued the policy under which Plaintiff seeks benefits.

FACTS

On May 12, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Pasadena when another vehicle crossed into his lane and struck his car head-on. The impact occurred at low speed, but it was forceful enough to jolt Plaintiff's body violently against his seat and restraint system. Plaintiff reported the collision to Defendant promptly and submitted the information Defendant requested. Despite this, Defendant has delayed evaluating the claim and has not paid the medical expenses and vehicle-related losses Plaintiff incurred as a result.

NEGLIGENCE

Defendant owed Plaintiff a duty under its policy and under Texas law to investigate and handle his claim in good faith, to communicate with him reasonably, and to pay covered benefits within the time required by the Texas Insurance Code. Defendant breached these duties by failing to conduct a prompt and reasonable investigation, by unreasonably delaying payment, and by failing to explain the basis for its position in writing. These failures caused Plaintiff economic harm and prolonged his physical distress.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff sustained a back strain that has required treatment, restricted his daily activities, and caused ongoing pain. Plaintiff has incurred medical expenses, lost wages, and out-of-pocket costs, and he will likely incur additional care in the future. Plaintiff seeks actual damages, statutory interest, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $84,000.00, together with all other relief to which he is entitled.